BNSS — The Story Notes

Criminal Procedure (BNSS 2023 · old CrPC 1973) · Juvenile Justice Act 2015 · Probation of Offenders Act 1958

All 5 units · one crime, one story, start to finish · by **lawsticker-ai.com**

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*One evening at the market, **A** stabs shopkeeper **Z**. His 16-year-old brother **J** holds Z; his friend **B** grabs the cash. Follow this one case from FIR to arrest, bail, trial, verdict, appeal, prison and reform — every section of the syllabus shows up as a scene.*

The cast

🧔 **A** the accused — stabs Z	👨‍🦳 **Z** shopkeeper, the victim	👩 **W** Z's daughter, informant	🧑 **B** A's friend — grabs cash	🧒 **J** A's brother, 16	👧 **S** J's sister, 8
👮 **SI** investigating officer	👩‍⚖️ **Magistrate** takes cognizance	👨‍⚖️ **Sessions Judge** tries A	🤵 **PP** for the State	👩‍💼 **A's lawyer** defence counsel	🧑‍🏫 **Probation officer** supervises

The story map (16 episodes)

Ep 0 📘 **The Rulebook**
why procedure · fair trial · courts · police, PP, defence · 3 labels
Unit I

Ep 1 🔪 **A Stabbing at the Market**
FIR · investigation · custody clock · CLA 2018
Unit I

Ep 2 🚪 **The Knock on the Door**
arrest · S.35 notice · rights · Art. 22 · D.K. Basu
Units I–II

Ep 3 🔍 **The Hunt for the Knife**
search · seizure · videography · validity
Unit II

Ep 4 🏛️ **The Court Takes Over**
cognizance · complaint · dismissal · process
Unit II

Ep 5 🔓 **Can He Go Home?**
bail · anticipatory · default · bonds · cancellation
Unit II

Ep 6 🏃 **The Vanishing Act**
summons · warrant · proclamation · attachment
Unit I

Ep 7 ✋ **"This Case Cannot Go On!"**
preliminary pleas · venue · limitation · autrefois
Unit III

Ep 8 ⚖️ **The Promise of a Fair Trial**
presumption · rights of accused · speedy trial
Unit III

Ep 9 🧍 **In the Dock**
charge · joinder · Sessions trial
Unit III

Ep 10 ⚡ **Shortcuts**
compounding · plea bargaining · summary trial
Unit IV

Ep 11 📜 **The Verdict**
judgment · probation/admonition · copies
Unit IV

Ep 12 🗣️ **The Victim's Voice**
victim's rights · compensation · VCS
Unit IV

Ep 13 🔁 **Second Chances**
appeal · reference · review · revision · S.528
Unit IV

Ep 14 🕊️ **Mercy and Reform**
PO Act · parole · furlough · remission
Unit V

Ep 15 🧒 **The Boy in the Story**
JJ Act · JJB · CWC · adoption · homes
Unit V

How to read

BNSS 35 — new section
CrPC 41 — old section
yellow — exam keyword
⭐ golden rule — must-write line
🆕 purple box — new in BNSS
green box — case: story → held
📌 sticky — memory hook
🎬 — worked example
comic strip — the scene to picture

Before our story begins, learn the rulebook every character must follow.

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IPC says WHAT is a crime…	…BNSS says HOW to catch & try!	Who can punish how much?	We run every case.
 the law	 the procedure	 the courts	 the players
Substantive law (BNS) = **what** is a crime.	Procedural law (BNSS) = **how** to investigate, try, punish.	Courts arranged like a **ladder**.	**Police · Prosecutor · Defence.**

Why criminal procedure? BNSS 1–5 CrPC 1–5

rationale

Substantive criminal law (BNS) is a dead letter without procedure. Procedure = the machinery to investigate, arrest, collect evidence, try and punish.

1. **Balances** society's need to convict with the accused's liberty
2. **Controls power** of police and courts — no arbitrariness
3. Ensures the accused is told, heard, defended, judged by an independent court
4. Mainly procedural, but has some substantive parts (maintenance, preventive action)

History →

1861 first Code → 1872 · 1882 → 1898 75 years → 1973 41st Law Comm. → 2023 BNSS

CrPC 1973 (Act 2 of 1974) in force 1 April 1974 · 484 sections, 37 chapters, 2 Schedules. **BNSS 2023** in force 1 July 2024 · 531 sections, 39 chapters, 2 Schedules. Same day: IPC → **BNS**, Evidence Act → **BSA**. Concurrent List, Entry 2.

🆕 New in BNSS

Trials, inquiries and proceedings may be held in electronic mode (S.530) · audio-video recording of search, statements, evidence · Zero FIR & e-FIR · time limits for charge sheet, charge, judgment · forensic team for 7+ year offences · community service · trial in absentia.

Zahira Habibullah Sheikh v State of Gujarat (Best Bakery) (2004)

- *story* — Witnesses turned hostile under threats; the trial collapsed and accused were acquitted.
- *held* — A fair trial is fair to **accused, victim and society**; retrial ordered outside Gujarat.

Fair trial & the Constitution

Arts. 14 · 20 · 21 · 22 · 39A

Article	Promise
14	same procedure for all; nothing arbitrary
20(1)	no ex post facto punishment (lesser punishment can apply back — Rattan Lal, 1965)
20(2)	no double jeopardy (prosecuted **and** punished)
20(3)	no self-incrimination (accused, compulsion, testimony)
21	procedure must be just, fair, reasonable
22(1), (2)	grounds · lawyer · Magistrate in 24 hours
39A	free legal aid

Features of a fair trial →

→ impartial judge (no one a judge in his own cause) · adversarial system · presumption of innocence
→ trial in open court · evidence in the accused's presence · cross-examination
→ copies of papers + a clear charge · counsel + legal aid · speedy trial · no double jeopardy · reasoned judgment + appeal

📌 **Art. 20 = P-T-M**
not for the Past · not Twice · not from your own Mouth

Maneka Gandhi v Union of India (1978)

- *story* — Passport impounded without a hearing.
- *held* — "Procedure established by law" must be **just, fair and reasonable**.

Nandini Satpathy v P.L. Dani (1978) — Art. 20(3) protects even during police questioning
Selvi v State of Karnataka (2010) — narco, polygraph, brain-mapping without consent violate 20(3)
State of Bombay v Kathi Kalu Oghad (1961) — fingerprints, handwriting are not 'testimony'
M.H. Hoskot v State of Maharashtra (1978) — free legal aid + copy of judgment are part of fair procedure
Hussainara Khatoon v State of Bihar (1979) — speedy trial is part of Art. 21

Words of S.2 (MCQ goldmine) BNSS 2(1)

CrPC 2

Word	Meaning
Bailable	shown bailable in the First Schedule; rest non-bailable
Cognizable	police may arrest without warrant
Complaint	allegation to a Magistrate (not police report; but police report on a non-cognizable case = deemed complaint)
Inquiry	by a Magistrate/court, other than trial
Investigation	evidence collection by police
Judicial proceeding	evidence on oath
Police report	the 'charge sheet' (S.193)
Warrant case	death, life or > 2 years
Summons case	not a warrant case
Victim	suffered loss/injury; incl. guardian, legal heir

🆕 **New in BNSS**
BNSS defines bail, bail bond, bond (CrPC didn't define bail), audio-video electronic means and electronic communication.

📌 Investigation = police · Inquiry = Magistrate · Trial = court decides guilt

Criminal courts & their powers BNSS 6–29

CrPC 6–35

Besides the Supreme Court & High Courts, S.6 → Courts of Session · Judicial Magistrates I Class · Judicial Magistrates II Class · Executive Magistrates.

Court	Can sentence
High Court · Sessions Judge	any sentence (death needs HC confirmation)
Chief Judicial Magistrate	up to 7 years
JM First Class	3 years + fine ₹50,000 + community service
JM Second Class	1 year + fine ₹10,000 + community service
Executive Magistrate	keeps the peace; no trials

→ Sessions Judge appointed by the High Court; Executive Magistrates by the State Govt
→ Imprisonment in default of fine ≤ ¼ of the term · several offences: aggregate ≤ 14 years

🆕 **New in BNSS**
Metropolitan Magistrates and Asst. Sessions Judges dropped; fines raised (₹50,000 / ₹10,000); community service added as a punishment.

📌 1 · 3 · 7 · any — climb the court ladder

Police, Prosecutor, Defence BNSS 18–20 · 338–341

CrPC 24–25A · 301–304

Who runs a criminal case?

- 👮 **Police** — investigate; SHO is key; superior officers have SHO's powers
- 🧑‍💼 **Prosecutor** — presents the State's case
- 👩‍⚖️ **Defence** — protects the accused

→ **Public Prosecutor** (S.18): advocate of 7 years · Special PP 10 years · Asst. PP in Magistrates' courts (S.19) · Directorate of Prosecution (S.20)
→ Victim's private lawyer works under the PP · PP may withdraw with court's consent (S.360)
→ Accused: lawyer of choice (S.340) · legal aid at State cost (S.341, Art. 39A)

Khatri v State of Bihar (1981) — Magistrate must tell the accused of free legal aid from first production
Suk Das v UT of Arunachal Pradesh (1986) — conviction without that information is vitiated
Shiv Kumar v Hukam Chand (1999) — PP is not the complainant's mouthpiece
Prakash Singh v Union of India (2006) — 7 directives for police reform

📌 "A prosecutor is a minister of justice, not a persecutor."

The three labels of every offence First Schedule

Label	One side	Other side
🚔 **Cognizable?**	arrest w/o warrant · police investigate on own · FIR (S.173)	warrant needed · investigate only with Magistrate's order (S.174)
🔓 **Bailable?**	bail is a right (S.478)	court's discretion (S.480, 483)
📮 **Trial type?**	summons case: ≤ 2 yrs, no formal charge	warrant case: > 2 yrs, charge framed

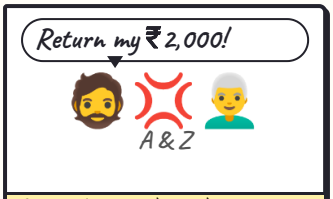
→ Other laws: > 7 yrs → cognizable, non-bailable, Sessions · 3–7 → cognizable, non-bailable, JMFC · < 3 → non-cognizable, bailable
→ Mixed case = treated as cognizable · 4th label: compoundable (S.359)

📌 Cognizable = Cop can Catch · Bailable = Bail by right · Warrant case = more than two

Episode 1 A Stabbing at the Market

The 'pre-trial process' begins: information → investigation → police report.

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9 pm. A quarrels with shopkeeper **Z**.



A **stabs** Z; A's brother **J (16)** holds Z; friend **B** grabs cash & phone.



Z's daughter **W** runs to the police station.



Attempt to murder = cognizable → **FIR**.

FIR BNSS 173 CrPC 154

FIR = first information of a cognizable offence given to the officer in charge of a police station. Sets the criminal law in motion. (The words "FIR" aren't in the Code.)

tell (oral / written / electronic) → write (by officer) → read over → sign (informant) → enter (book) → free copy (forthwith)

- → Woman victim of sexual offences: recorded by a woman officer; disabled victim at her home, videographed
- → Refusal → SP (173(4)) → Magistrate (175(3)) or complaint (S.223)
- → FIR is not substantive evidence: corroborates/contradicts the informant only; substantive only as a dying declaration
- → Delay must be explained · an FIR by the accused that is a confession can't be used against him

🆕 New in BNSS

Zero FIR at any station irrespective of area · e-FIR, signed within 3 days · for offences punishable 3–7 years, a preliminary enquiry within 14 days with DSP's permission (173(3)).

Lalita Kumari v Govt. of U.P. (2013)

- **story** — A father's complaint that his minor daughter was kidnapped was not registered.
- **held** — Registration is **mandatory** if a cognizable offence is disclosed; preliminary inquiry only in matrimonial, commercial, medical negligence, corruption, delay cases.

State of Haryana v Bhajan Lal (1992) — 7 categories where HC may quash an FIR
T.T. Antony v State of Kerala (2001) — no second FIR for the same incident
Thulia Kali v State of T.N. (1972) — delay invites embellishment; must be explained
Aghnoo Nagesia v State of Bihar (1966) — confessional FIR by accused not usable against him

📌 W-R-S-C: Write · Read over · Sign · Copy free

Investigation BNSS 174–196 CrPC 155–176

Investigation = all proceedings for collection of evidence by a police officer (not a Magistrate).

5 steps — H.N. Rishbud (1955) →

1. spot — report to Magistrate first
2. facts
3. arrest — suspect
4. evidence — examine, search, seize
5. opinion — police report

BNSS	Rule
174	non-cognizable: no investigation without Magistrate's order
175	SHO investigates cognizable cases; 175(3) Magistrate may order it (on an affidavit-backed application)
176	go to spot; may decline minor cases; forensic team for 7+ year offences; videograph
179	summon witnesses — women, under 15, over 60, disabled: questioned at home
180	oral examination; may be audio-video recorded
181	statements not signed; only to contradict
183	confession before a Judicial Magistrate
184	medical exam of rape victim within 24 h
192	case diary — an aid, not evidence
193	police report (charge sheet)

Confession before a Magistrate (S.183) →

1. only a Judicial Magistrate
2. warn: not bound to confess; may be used against you
3. satisfied it is voluntary; time to reflect
4. recorded & signed + memorandum
5. unwilling → never back to police custody

📌 180 = police, unsigned · 183 = Magistrate, signed

Sakiri Vasu v State of U.P. (2008) — Magistrate can monitor investigation under 175(3)
Tahsildar Singh v State of U.P. (1959) — how police statements can contradict
State of U.P. v Singhara Singh (1964) — confession not recorded per the section can't be proved orally

The custody clock

BNSS 58 · 187 | CrPC 57 · 167

arrest 0 → 24 hours to Magistrate → 15 days police custody → 60 / 90 days charge sheet → missed? default bail

- 90 days: death, life or ≥ 10 years · 60 days: others
- Executive Magistrate remand ≤ 7 days · accused produced in person · reasons recorded
- Summons case: stop investigation after 6 months unless reasons

New in BNSS

The 15 days of police custody may be taken in parts within the first 40 / 60 days (S.187(3)). Production can be by audio-video.

Rakesh Kumar Paul v State of Assam (2017)

story Charge sheet was late; accused had asked for bail.

held 'Not less than 10 years' means a **minimum** of 10 years; default bail is an indefeasible right and the accused must be told of it.

CBI v Anupam J. Kulkarni (1992) — police custody only in first 15 days (BNSS changed this)
Uday Mohanlal Acharya (2001) — default bail arises on application + readiness to furnish bail

Police report & after

BNSS 189–196 | CrPC 169–176

- Evidence weak → release on bond (S.189) · sufficient → forward to Magistrate (S.190)
- **S.193 report**: parties, nature of information, witnesses, offence?, by whom, arrested?, released? · rape investigation in 2 months
- Further investigation allowed even after report (S.193(9)) — complete within 90 days unless court extends
- S.194 police inquest (suicide, unnatural death) · S.196 Magistrate's inquiry — compulsory for death/rape in custody

New in BNSS

Victim informed of investigation progress within 90 days · report may be sent electronically · further investigation needs the court's permission after trial begins.

Bhagwant Singh v Commissioner of Police (1985) — notice to informant before accepting a closure report
Vinubhai Haribhai Malaviya v State of Gujarat (2019) — Magistrate can order further investigation even after cognizance

What if Z were a 12-year-old girl?

Criminal Law (Amendment) Act 2018

Passed after Kathua & Unnao; Ordinance 21 April 2018; amended IPC, Evidence Act, CrPC, POCSO.

10 yrs rape minimum (was 7)	**20 yrs** girl < 16: 20 to life	**20/death** girl < 12	**life/death** gang rape < 12
2 months investigation	**2 months** trial	**6 months** appeal	**no AB** no anticipatory bail

Informant must be present at bail hearing; notice to PP within 15 days. (2013 Nirbhaya amendment = acid attack, stalking, voyeurism; 2005 = plea bargaining, Directorate; 2008 = S.41A notice.)

📌 10 · 20 · death — and 2 · 2 · 6

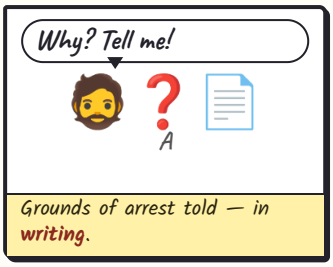
The Knock on the Door

Arrest takes away liberty — never dignity.

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Attempt to murder: **> 7 years** → arrest without warrant.



Grounds of arrest told — in **writing**.



B's theft is under 7 years → **notice**, not handcuffs.



A is produced before the **Magistrate**.

Arrest without warrant — BNSS 35 (CrPC 41)

Arrest (not defined) = taking a person into custody by legal authority. Police may arrest without warrant when a person:

1. commits a cognizable offence **in their presence**
2. offence **up to 7 years**: only if **necessary** (5 purposes) + **reasons in writing** (also reasons for not arresting)
3. offence **> 7 years**: on credible information
4. is a proclaimed offender · has stolen property · obstructs police / escapes · army deserter · offence abroad · released convict breaking rules · on requisition

5 purposes that make arrest 'necessary' →
prevent further offence · proper investigation · stop tampering · stop threats to witnesses · ensure presence in court

New in BNSS
S.35(7): offence < 3 years + person **infirm or over 60** → arrest needs permission of an officer **not below DSP**.

Arnesh Kumar v State of Bihar (2014)
- *story* — A husband faced automatic arrest in a S.498A dowry-cruelty case.
- *held* — No **automatic arrest** for offences up to 7 years; police fill a **checklist**; Magistrate checks it before detention; breach = contempt.

Joginder Kumar v State of U.P. (1994) — power to arrest ≠ justification to arrest
Satender Kumar Antil v CBI (2022) — breach of 41/41A → bail; bail guidelines

📌 7 is the line

Notice of appearance & safeguards

BNSS 35(3)–(6) · 36–38 (CrPC 41A–41D)

notice
arrest not needed → notice to appear

⇩

comply
→ no arrest

⇩

don't comply
→ may be arrested

Safeguard	BNSS (CrPC)
notice of appearance	35(3) (41A)
name tag, arrest memo attested by a witness, countersigned	36 (41B)
designated officer & display of arrestees in every station + district	37 (41C)
meet an advocate during interrogation (not throughout)	38 (41D)

Impact: arrest became the **exception, not the rule**; fewer undertrials; police accountable; Art. 21 protected.

📌 Notice, not handcuffs

Arrest by others & how it's made — BNSS 40–46

CrPC 43–49

→ **Private person** (S.40): **non-bailable + cognizable** offence in his presence, or proclaimed offender → hand over to police **within 6 hours** (new)
→ **Magistrate** (S.41) may arrest for offence in his presence
→ **How** (S.43): **touch or confine**, unless submission · force if he resists · death only if offence is death/life
→ **Handcuffs** (43(3), new): allowed for habitual offenders, escapees, terrorists, organised crime, rape, murder etc.
→ **Woman**: not after **sunset / before sunrise**, except by a woman officer with JMFC's prior permission (43(5))
→ search of place entered (44) · no more restraint than necessary (46)

Prem Shankar Shukla v Delhi Admn. (1980) — handcuffing is prima facie inhuman
Citizens for Democracy v State of Assam (1995) — no handcuffs without Magistrate's permission

📌 Touch or submission makes an arrest · Private arrest: N-C-P

Rights of an arrested person BNSS 47–62

CrPC 50–60A Art. 22

Right	BNSS (CrPC)
told the grounds of arrest	47 (50) · Art. 22(1)
told of right to bail (bailable)	47(2) (50(2))
relative/friend informed + told of this right	48 (50A)
lawyer of choice	38, 340 · Art. 22(1)
before Magistrate in 24 h (excl. journey)	58 (57) · Art. 22(2)
search with decency; woman by woman	49 (51)
medical examination	51–53 (53–54)
health & safety	56 (55A)
free legal aid	341 (304) · Art. 39A
silence	Art. 20(3)
compensation for groundless arrest	399 (358)

Art. 22(3): (1) & (2) don't protect an enemy alien or a preventive detainee.

> ***Khatri v State of Bihar*** (1981) — Bhagalpur blindings: 24-hour rule scrupulously observed
> ***Sheela Barse v State of Maharashtra*** (1983) — women suspects in separate lock-ups
> ***Pankaj Bansal v Union of India*** (2023) — grounds of arrest in writing (followed in Prabir Purkayastha, 2024)

📌 Good Lawyers Really Make Magistrates Smile: Grounds · Lawyer · Relative · Medical · Magistrate · Silence

D.K. Basu guidelines D.K. Basu v State of W.B. 1997

> ***D.K. Basu v State of West Bengal*** (1997)
>
> *story* — A legal-aid chairman wrote to the CJI about deaths in police lock-ups; the letter became a writ.
>
> *held* — Custodial violence violates Art. 21; 11 requirements for every arrest; compensation for custodial death.

1. visible name tags
2. arrest memo: witness + arrestee sign
3. friend/relative informed
4. outside district: within 8–12 h
5. told of this right
6. diary entry
7. inspection memo of injuries
8. medical every 48 h
9. copies to Magistrate
10. lawyer during interrogation
11. control room told within 12 h

> ***Nilabati Behera v State of Orissa*** (1993) — compensation for custodial death: public-law remedy
> ***Rudul Sah v State of Bihar*** (1983) — compensation for illegal detention

Episode 3 The Hunt for the Knife

A search looks for a thing or a person; a seizure takes it into the law's custody.

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Search **without warrant** during investigation.



Two independent local witnesses.



Search **video-recorded** on a mobile phone.



Seizure list signed; report sent to the **Magistrate**.

Search with a warrant BNSS 94–103 CrPC 91–99

ask first — S.94: summons to produce (incl. electronic records) → then warrant S.96

S.96 — warrant when the person Won't produce · holder Unknown · a General search is needed. May be limited to a place.

BNSS (CrPC)	Search for
95 (92)	letters/parcels in postal custody
97 (94)	stolen property, forged documents, counterfeit coins, obscene objects
98 (95)	forfeited publications
100 (97)	persons wrongfully confined
101 (98)	restoration of abducted women

V.S. Kuttan Pillai v Ramakrishnan (1980) — warrant for accused's premises doesn't violate Art. 20(3)
State of Gujarat v Shyamlal Mohanlal Choksi (1965) — summons to produce (S.94) doesn't apply to the accused

📌 S.96 = W-U-G: Won't · Unknown · General

Police search without warrant BNSS 185–186

CrPC 165–166

1. officer in charge / investigating officer
2. reasonable grounds that a thing needed is in a place in his limits
3. can't be got without undue delay
4. records reasons + the thing sought
5. searches in person (or a subordinate with written order)
6. copies to the nearest Magistrate within 48 h; free copy to owner

S.186: search in another station's area — through that officer, or directly if delay would lose evidence.

General rules of search BNSS 103 CrPC 100

- → free ingress; may break open a door if refused
- → suspect searched; a woman by a woman with decency
- → two or more independent, respectable local witnesses (panchas)
- → list of things seized (panchnama) signed by witnesses; copy to occupant
- → refusing to be a witness is an offence

NEW New in BNSS

S.105: every search and seizure must be audio-video recorded (preferably on a mobile phone) and sent to the Magistrate without delay.

State of Maharashtra v Natwarlal Damodardas Soni (1980) — irregular search ≠ inadmissible seizure
State of Punjab v Balbir Singh (1994) — breach of rules = irregularity; court weighs evidence carefully
Sunder Singh v State of U.P. (1956) — no local witnesses doesn't by itself vitiate

📌 2 panchas + 1 panchnama + 1 copy + 1 video

Seizure BNSS 106–107 CrPC 102

S.106: any police officer may seize property alleged/suspected stolen or found in suspicious circumstances; report to the Magistrate; may hand it over on a bond.

NEW New in BNSS

S.107: Magistrate may attach and forfeit proceeds of crime on police application. Seized property to be photographed/videographed and disposed of quickly.

- → bank account = property; can be frozen (Tapas D. Neogy, 1999) · immovable property can't be seized under S.106 (Nevada Properties, 2019)
- → custody & disposal pending trial; release vehicles quickly (Sunderbhai Ambalal Desai, 2002)

Constitutional validity of search & seizure

Arts. 19 · 20(3) · 21

Question	Answer
Art. 20(3) — compelled testimony?	No: search is the officer's act (M.P. Sharma)
Art. 19 — property, trade?	temporary, reasonable restriction
Art. 21 — privacy?	privacy is a fundamental right (Puttaswamy, 2017); search must be lawful, fair (Canara Bank, 2005)
Illegal search?	evidence still admissible if relevant (Pooran Mal, 1974; Radhakishan, 1963) — but NDPS S.50 is mandatory (Baldev Singh, 1999)

M.P. Sharma v Satish Chandra (1954)

story Company directors challenged search warrants under Art. 20(3).

held 8 judges: search & seizure is the State's overriding power; **not testimonial compulsion**.

The 'trial process' begins when a Magistrate takes cognizance.

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Police report reaches the **Magistrate**.



Cognizance — of the offence, not the offender.



W files a **complaint** against B; examined on oath.



Attempt to murder → **committed** to the Court of Session.

Cognizance BNSS 210–222 CrPC 190–199

Cognizance = Magistrate applies his judicial mind to the offence to proceed. Not defined. Taken of the offence, not the offender.

S.210 — three doors

- **Complaint**
- **Police report**
- **Information / own knowledge** — accused may ask for another Magistrate (S.211)

Bar	Rule
213 (193)	Sessions Court only after committal
215 (195)	contempt of public servants; offences against justice: complaint by that public servant / court
217–218 (196–197)	offences against State; public servants & judges: prior Govt sanction
219, 222 (198–199)	marriage offences, defamation: only the aggrieved person

NEW New in BNSS
Sanction for a public servant is deemed granted if the Government doesn't decide within 120 days (S.218).

R.R. Chari v State of U.P. (1951) — meaning of cognizance
Tula Ram v Kishore Singh (1977) — ordering investigation is not cognizance
Matajog Dobey v H.C. Bhari (1955) — sanction where the act is reasonably connected with duty
Dharam Pal v State of Haryana (2014) — Sessions Court can summon additional accused after committal

📌 C-P-I: Complaint · Police report · Information

Complaint & its dismissal BNSS 223–226 CrPC 200–203

223
examine complainant + witnesses on oath

⇩

225
postpone; inquire / order investigation (must if accused lives outside)

⇩

226
dismiss with brief reasons

⇩

227
or issue process

→ no oath exam if a public servant or court complains
→ dismissal is not an acquittal; second complaint only in exceptional cases (new facts, manifest error) · remedy: revision
→ no investigation ordered where triable only by Sessions

NEW New in BNSS
S.223: no cognizance on a complaint without hearing the accused first.

Pepsi Foods v Special Judicial Magistrate (1998)
- *story* — Company summoned mechanically on a bottle-contamination complaint.
- *held* — Summoning is a serious matter; the order must show application of mind.

Chandra Deo Singh v Prokash Chandra Bose (1963) — only a prima facie case at this stage
Pramatha Nath Talukdar v Saroj Ranjan Sarkar (1962) — second complaint only in exceptional cases
Vijay Dhanuka v Najima Mamtaj (2014) — inquiry mandatory if accused lives outside

📌 223 examine · 225 inquire · 226 dismiss · 227 summon

Process, copies, committal BNSS 227–233

CrPC 204–210

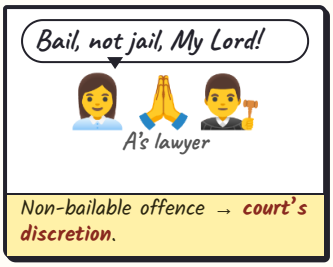
- → **227**: summons case → summons · warrant case → warrant (or summons) · witness list first
- → **228**: appear by pleader · **229**: petty case — plead guilty by post
- → **230**: free copies to accused: police report, FIR, statements, confessions, documents — within 14 days (electronic allowed)
- → **232**: commit Sessions cases — within 90 days of cognizance
- → **233**: complaint + police case on same offence tried together

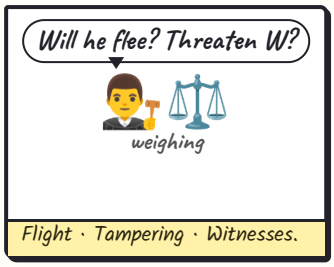
> ***Adalat Prasad v Rooplal Jindal*** (2004) — Magistrate can't recall his own summoning order
> ***Kewal Krishan v Suraj Bhan*** (1980) — at committal only a prima facie Sessions case

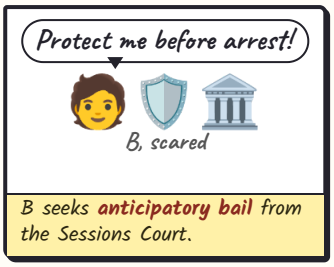
Can He Go Home?

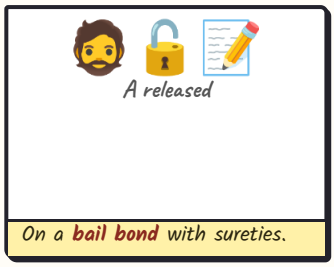
Liberty is the rule; detention before conviction is the exception.

more free notes → lawsticker-ai.com









Bail: meaning & bailable offences

BNSS 478–479 · CrPC 436–436A

Bail = release from custody on an undertaking (with/without sureties) to appear. Moves him from the law's custody to his sureties'. **Bail bond** = with sureties · **bond** = personal bond.

> ★ "The basic rule is bail, not jail." — Krishna Iyer J., *State of Rajasthan v Balchand* (1977)

- → **S.478**: bailable → bail is a right; police or court must release · indigent (can't furnish in a week) → personal bond
- → **S.479** undertrial: released after half the maximum · first-time offender: one-third (new) · not for death/life offences
- → Court weighs: gravity · evidence · flight · tampering · witnesses · character · time in custody · delay

> ***Moti Ram v State of M.P.*** (1978)
> *story* — A poor mason was asked for a ₹10,000 surety from his own district.
> *held* — Unreasonable; bail includes release on personal bond; money-based bail discriminates.

Hussainara Khatoon v State of Bihar (1979) — release undertrials on personal bond
Gudikanti Narasimhulu v PP (1978) — bail is judicial discretion
Sanjay Chandra v CBI (2012) — bail is neither punitive nor preventive
Satender Kumar Antil v CBI (2022) — bail guidelines; decide within 2 weeks

📌 Bailable = right · Non-bailable = discretion · F-T-W

Bail in non-bailable offences

BNSS 480 · 483 · CrPC 437 · 439

	Magistrate (480)	Sessions / HC (483)
Bar	no bail if reasonable grounds of death/life offence or bad record	not bound by those bars
Except	woman, under 16, sick or infirm	—
Extra	trial not over in 60 days → bail · conditions for 7+ yrs	set aside conditions; notice to PP; cancel

Gurcharan Singh v State (Delhi Admn.) (1978) — S.437 v S.439 considerations
P. Chidambaram v ED (2019) — triple test: flight, tampering, witnesses
Niranjan Singh v Prabhakar Kharote (1980) — custody includes surrender

📌 480 limited · 483 wide · W-S-16: Woman · Sick · under 16

Anticipatory bail

BNSS 482 · CrPC 438

A direction that if arrested for a non-bailable offence, he shall be released on bail. Only High Court or Court of Session. New in 1973 (41st Report).

reason to believe (real fear) → HC / Sessions → conditions (join probe · no threats · not leave India) → arrested? (released at once)

- → Not available: rape of girls < 16 / < 12; SC/ST Act (S.18)
- → BNSS 482 drops the list of factors; power remains

> ***Gurbaksh Singh Sibbia v State of Punjab*** (1980)
> *story* — A Punjab minister facing corruption charges sought anticipatory bail; HC laid down rigid limits.
> *held* — 5 judges: S.438 protects Art. 21 liberty; don't read in limits; but no blanket order.

Sushila Aggarwal v State (NCT Delhi) (2020) — need not be time-bound
Siddharam Mhetre v State of Maharashtra (2011) — arrest is the last option
Balchand Jain v State of M.P. (1976) — 'anticipatory bail' is a misnomer
Lavesh v State (NCT Delhi) (2012) — not for an absconder

Default bail, cancellation, bonds

BNSS 187 · 480–496 · CrPC 167(2) · 437–450

Default bail: charge sheet not filed in 60/90 days → released if he applies & furnishes bail; indefeasible; claim before the charge sheet.

Cancellation: Misuse · Interference · Tampering · Flight · perverse order.

BNSS (CrPC)	Bond rule
485 (440)	amount not excessive
486–487 (441)	bond + sureties; surety declares other cases
489 (444)	surety may seek discharge
490 (445)	deposit instead of bond
491 (446)	forfeiture; surety to civil jail ≤ 6 months
481 (437A)	bond to appear before appellate court

Dolat Ram v State of Haryana (1995) — cancellation needs cogent, overwhelming new circumstances
Aslam Babalal Desai v State of Maharashtra (1992) — default bail is bail under the bail chapter

📌 60/90 · M-I-T-F · surety = person, bond = paper

The Vanishing Act

The Code has a ladder of steps to ensure the presence of the accused.

more free notes → lawsticker-ai.com

Appear on the 10th.	A missing	Arrest and bring him!	Appear in 30 days!
summons		warrant	proclamation
Mildest process: **summons**.	A skips court and **hides**.	Bailable → **non-bailable warrant**.	**Proclamation**, then **attachment** of property.

Summons 63–71 → Bailable warrant 73 → Non-bailable warrant 72–83 → Proclamation 84 → Attachment 85

Summons BNSS 63–71 CrPC 61–69

Written order to appear. Form: writing · duplicate · signed · sealed — or electronic with the court's seal (new).

personal
receipt on duplicate

⇩

adult family member
not a servant · BNSS: 'adult member' (gender-neutral)

⇩

affix
to his house

→ company: secretary, manager, or registered post · Govt servant: via head of office · outside limits: via local Magistrate

→ witness: post or electronic communication · warrant instead of summons if he may abscond (S.90)

→ dispense with personal attendance (S.228) · petty case: plead guilty by post (S.229)

📌 W-D-S-S: Writing · Duplicate · Signed · Sealed

Warrant of arrest BNSS 72–83 CrPC 70–81

Written order directing a police officer to arrest and produce. In force until cancelled or executed (doesn't lapse).

Summons	v/s	Warrant
to the **person** · appear · duplicate · liberty untouched		to a **police officer** · arrest · single · custody

→ **Bailable** warrant: endorsement to release on security

→ executed anywhere in India · produced within 24 h · arrested outside → local Magistrate

Inder Mohan Goswami v State of Uttaranchal (2007) — NBW is the last resort

Raghuvansh Dewanchand Bhasin (2011) — guidelines for NBWs; compensation for wrongful arrest

📌 Summons → Bailable → Non-bailable

The absconder BNSS 84–89 · 356 CrPC 82–86

proclamation
appear in ≥ 30 days (84)

⇩

published
read in town · affixed to house · court-house · newspaper

⇩

proclaimed offender
grave offences (84(4))

⇩

attachment
movable/immovable (85)

⇩

claims
≤ 6 months

⇩

restoration
within 2 years if no notice

Property not sold for 6 months unless perishable · appeal against refusal to restore. Not appearing is itself an offence.

🆕 **New in BNSS**

S.86: attach a proclaimed person's property abroad · S.356: trial in absentia of a proclaimed offender (90 days after charge).

Lavesh v State (NCT Delhi) (2012) — absconder not entitled to anticipatory bail

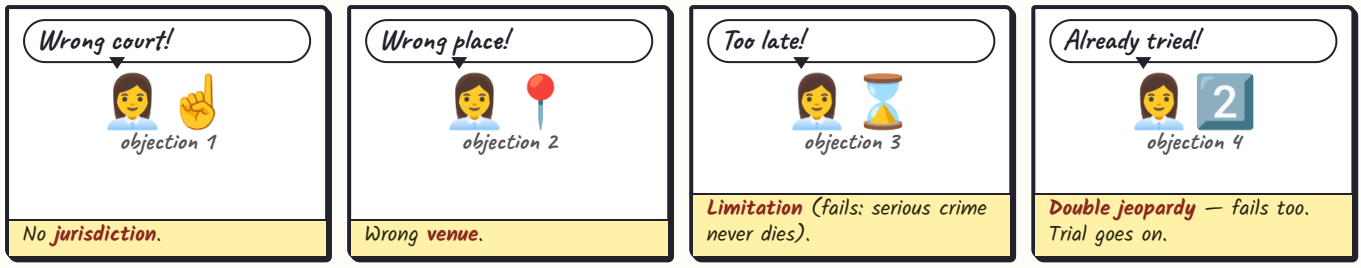
Kartarey v State of U.P. (1976) — absconding = hiding to evade the law

📌 30 days · 6 months · 2 years · read · house · court

"This Case Cannot Go On!"

Preliminary pleas say: whatever the facts, this court cannot try me.

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Preliminary pleas to bar trial

Unit III

Plea	Basis
no jurisdiction	First Schedule; court class
wrong place	S.197–209
time-barred	S.513–519
autrefois acquit/convict	Art. 20(2) · S.337
no sanction	S.217–218
no complaint by the proper person	S.215, 219, 222
unsound mind	trial postponed
pardon (approver)	tender of pardon
child	only the JJ Board
compounded / withdrawn	S.359 / 360
issue estoppel	Pritam Singh (1956)

Raise early, before charge. Wrong place alone doesn't vitiate unless failure of justice.

📌 Judges Verify Limitation, Autrefois, Sanction, Complaint, Unsoundness, Pardon

Jurisdiction & venue

BNSS 197–209 · CrPC 177–189

S.197: ordinarily tried where the offence was committed.

BNSS (CrPC)	Also tried at
198 (178)	uncertain / partly / continuing / several places: any
199 (179)	where the act was done or the consequence ensued
200 (180)	related offence (abetment, receiving): either
201 (181)	kidnapping: taken/kept · theft: committed or property found · breach of trust: received/to be returned
202 (182)	letters / electronic communication: sent or received
203 (183)	journey: any place passed
206 (186)	doubt → High Court decides
208 (188)	outside India by a citizen → where found + Central sanction

🎬 *Picture it*
Stabbed in town X, dies in a hospital in town Y → **either** (S.199). Phone stolen in X, found in Y → **either** (S.201).

Y. Abraham Ajith v Inspector of Police (2004) — 'ordinarily' = unless the Code says otherwise
Rupali Devi v State of U.P. (2019) — 498A case where the wife takes shelter

Time limitation

BNSS 513–519 · CrPC 467–473

Punishable with	Limitation
fine only	6 months
up to 1 year	1 year
1–3 years	3 years
over 3 years	none (nullum tempus occurrit regi)

→ starts: offence date / knowledge / identity known · exclusions: other court in good faith, stay, sanction time, absconding
→ continuing offence: fresh period every moment · court may extend in the interests of justice
→ bars cognizance, not investigation

Sarah Mathew v Institute of Cardio Vascular Diseases (2014) — count to the date of complaint, not cognizance
Arun Vyas v Anita Vyas (1999) — 498A cruelty is continuing

📌 6 · 1 · 3 · none

Autrefois acquit / convict

BNSS 337 · CrPC 300 · Art. 20(2)

★ *Nemo debet bis vexari* — no one shall be vexed twice for the same cause.

	Art. 20(2)	BNSS 337
covers	convict only (prosecuted and punished)	convict and acquit
scope	same offence	same offence + same facts
nature	fundamental right	statutory, wider

→ second trial allowed: distinct offence with State consent · new consequence (hurt → later death) · first court incompetent
→ Dismissal of complaint or discharge is not an acquittal

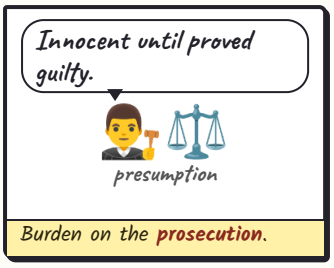
Maqbool Hussain v State of Bombay (1953)
story — Gold confiscated by Customs at the airport; then a criminal trial.
held — Customs isn't a court → no prosecution earlier → trial valid.

S.A. Venkataraman v UOI (1954) — departmental inquiry is not prosecution
State of Bombay v S.L. Apte (1961) — same offence = same ingredients
Kalawati v State of H.P. (1953) — appeal against acquittal is not a second trial

Episode 8 The Promise of a Fair Trial

From this moment the Code treats A with a set of promises.

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Fair trial & presumption of innocence

BNSS 308 · 346 · 351 (CrPC 273 · 309 · 313)

- impartial judge (no judge in own cause) · equal footing · notice of charge · trial in presence, open court
- cross-examination · counsel · explain evidence (S.351) · defence evidence · speedy trial · appeal
- burden on prosecution, never shifts · beyond reasonable doubt · two views → favour accused · silence not commented on
- reverse onus by statute: dowry death, abetment of suicide (BSA), NDPS, NI Act S.139

> ★ "Throughout the web of the English criminal law one golden thread is always to be seen — the prosecution must prove the prisoner's guilt." — Woolmington v DPP (1935)

New in BNSS

Evidence may be recorded by audio-video electronic means in the accused's or his pleader's presence (S.308).

Kali Ram v State of H.P. (1973) — two views: favour the accused
Noor Aga v State of Punjab (2008) — presumption of innocence is a human right; reverse onus valid
Manu Sharma v State (2010) — trial by media endangers fairness

Rights of the accused — stage by stage

Stage	Rights
Arrest	grounds · bail · lawyer · relative · 24 h · medical
Investigation	silence · no forced confession · default bail
Before trial	free copies (S.230) · clear charge · discharge hearing
Trial	open court · presence · interpreter · counsel · cross · S.351 · defence evidence · competent witness, not compellable
Judgment	hearing on sentence · free copy (S.404)
After	appeal · no double jeopardy · compensation · set-off of custody

S.351 (313): court questions the accused without oath; no punishment for refusing; answers may be considered.

Sharad Birdhichand Sarda v State of Maharashtra (1984) — circumstance not put under S.313 can't be used
Mohd. Hussain v State (NCT Delhi) (2012) — trial without defence counsel is no trial

📌 A-I-B-T-J-A: Arrest · Investigation · Before · Trial · Judgment · After

Speedy trial under Art. 21

BNSS 346 (CrPC 309)

Hussainara 1979: right found → Antulay 1992: 4 factors → P. Ramachandra Rao 2002: no fixed deadline

Hussainara Khatoon v State of Bihar (1979)

- **story** — Newspaper reports: thousands of undertrials in Bihar jails, some longer than the maximum sentence.
- **held** — A reasonably expeditious trial is part of Art. 21; ~40,000 released.

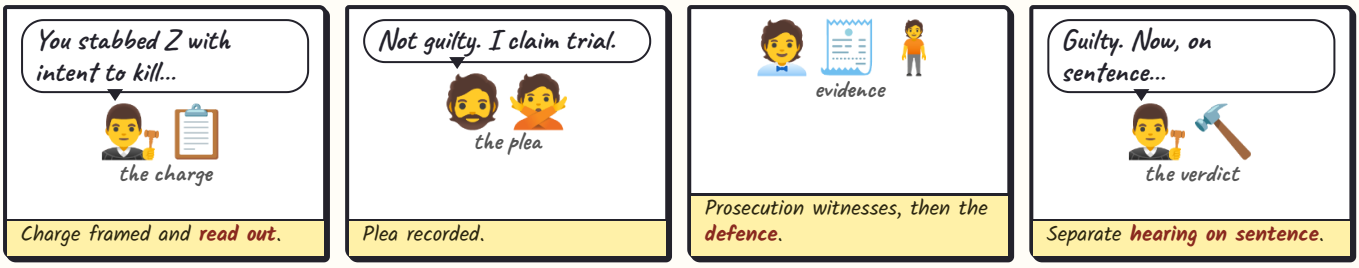
Antulay factors: Length · Reason · Assertion · Prejudice. Tools: day-to-day trial (S.346), 60/90 days, half-sentence release, limitation.

Kadra Pahadiya v State of Bihar (1981) — undertrials in leg irons
Vakil Prasad Singh v State of Bihar (2009) — quashed after 17 years' delay
Kartar Singh v State of Punjab (1994) — speedy trial = part of liberty

📌 H-A-P · L-R-A-P

The charge is the foundation; the Sessions trial is the building.

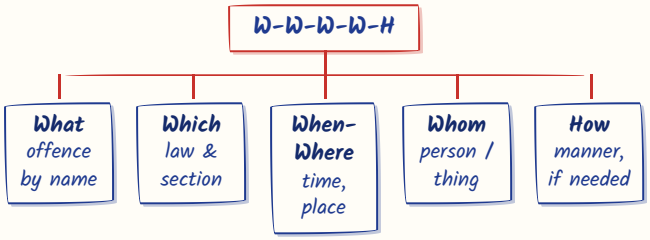
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Charge: form & content — BNSS 234–237

CrPC 211–214

Charge = precise formulation of the specific accusation, framed by the court, so the accused knows what to meet.



- → fact of charge = every legal condition fulfilled · language of court · previous conviction if relied on
- → breach of trust: gross sum + dates, period ≤ 1 year
- → charge sheet (police) ≠ charge (court) · summons case: no formal charge

> 🎬 **Model charge**
> "That you, on or about [date], at [place], stabbed Z with a knife with such intention that, had you caused death, you would be guilty of murder, and thereby committed an offence punishable under S.109 BNS (old S.307 IPC)..."

> ***Main Pal v State of Haryana*** (2010) — purpose: clear notice
> ***V.C. Shukla v State*** (1980) — charge = foundation of the accusation

Joinder of charges — BNSS 241–247

CrPC 218–224

Rule (S.241): every distinct offence, a separate charge, a separate trial. Exceptions:

BNSS (CrPC)	Exception
242 (219)	3 offences of same kind within 12 months
243 (220)	same transaction · breach of trust + falsified accounts
244 (221)	doubt which offence → charge in alternative
246 (223)	persons charged jointly
247 (224)	withdraw other charges after conviction = acquittal on them

Same transaction: proximity of time & place, continuity, community of purpose (*Cheemalapati Ganeswara Rao*, 1963).

> 📌 One offence, one charge, one trial · S-S-D-J · 3 in 12

Alteration & errors — BNSS 238–240 · 245 · 510

CrPC 215–217 · 222 · 464

- → alter or add any time before judgment; read & explain; new trial/adjourn if prejudice; recall witnesses
- → error matters only if accused misled + failure of justice
- → convict of a minor offence or attempt without fresh charge (charged attempt to murder → proved hurt with weapon)

> ***Willie (William) Slaney v State of M.P.*** (1956)
> **story** Accused convicted though the charge was defective.
> **held** The Code serves justice; the test is **prejudice**: did he know what he was tried for?

Sessions trial: the steps — BNSS 248–260

CrPC 225–237

committal → opening PP (249) → discharge? 250 → charge 251 → plea 252 → date 253 → evidence 254 → S.351 → acquittal? 255 → defence 256 → arguments 257 → judgment + sentence 258

Discharge (250) — **before** charge · no sufficient ground · not an acquittal

v/s

Acquittal (255/258) — **after** evidence · final · S.337 bars retrial

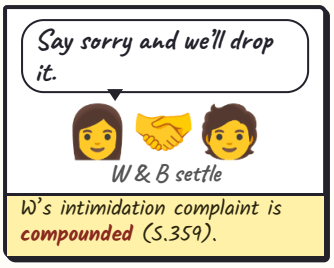
- → at charge: strong suspicion is enough; no mini-trial; accused can't produce his own material
- → hearing on sentence is mandatory, ideally on a later day

> 🆕 **New in BNSS**
> Discharge plea within 60 days of committal · charge within 60 days of first hearing · judgment within 30 days of arguments (max 45).

> ***Union of India v Prafulla Kumar Samal*** (1979) — 4 principles for discharge
> ***State of Orissa v Debendra Nath Padhi*** (2005) — accused can't produce material at charge stage
> ***Santa Singh v State of Punjab*** (1976) — sentence hearing mandatory
> ***Allauddin Mian v State of Bihar*** (1989) — hear sentence on a later date
> ***Bachan Singh v State of Punjab*** (1980) — death only in the rarest of rare cases

Not every case needs a full trial: settle it, bargain it, or try it in short.

more free notes → lawsticker-ai.com



Compounding of offences BNSS 359 CrPC 320

Compounding = the victim forgives and settles with the accused; composition = acquittal (359(8)).

Table	Who / how	Examples
359(1)	victim without court's permission	simple hurt, wrongful restraint, defamation, criminal intimidation, trespass
359(2)	victim with court's permission	theft, cheating, criminal breach of trust, grievous hurt (provocation)

→ only offences listed in the tables; others can't be compounded (359(9))
→ minor / unsound victim → guardian with court's permission · dead victim → legal representative with permission
→ abetment & attempt of a compoundable offence: compoundable
→ pending appeal/revision → leave of that court
→ no compounding if punishment enhanced for a previous conviction

★ Compounding ≠ quashing. A non-compoundable offence settled privately can only be quashed by the High Court (S.528, old 482).

Gian Singh v State of Punjab (2012) — HC may quash non-compoundable private disputes on settlement; not heinous or societal crimes
Narinder Singh v State of Punjab (2014) — guidelines; attempt to murder generally not quashed
Parbatbhai Aahir v State of Gujarat (2017) — 10 principles for quashing on settlement

📌 **359(1) no permission · 359(2) with permission · composition = acquittal**

Plea bargaining BNSS 289–300 CrPC 265A–265L

Accused admits guilt in return for a lighter sentence; added by the Cr. Law (Amendment) Act 2005 (Law Commission 142nd, 154th, 177th Reports; Malimath Committee).

Applies
offence ≤ **7 years** · charge-sheeted or cognizance on complaint · voluntary

?

Doesn't apply
death / life / >7 yrs · **socio-economic** offences · against a **woman** or **child under 14** · same offence earlier · **juvenile** (S.300)

application
290 · within 30 days of charge

⇩

in camera
voluntary?

⇩

MSD
291 · within 60 days · victim + PP

⇩

report
292

⇩

disposal
293 · compensation + sentence

If the law has...	Sentence	First offender
a minimum	½ of minimum	¼ of minimum
no minimum	¼ of maximum	⅙ of maximum

→ **295** judgment final — no appeal; only SLP (Art. 136) / writ (Arts. 226–227)
→ **297** set-off of detention · **298** statements not used for any other purpose
→ may release on probation / admonition instead

🆕 **New in BNSS**
30-day window to apply after charge and 60 days to work out the deal; first-time offender gets a deeper discount.

Murlidhar Meghraj Loya v State of Maharashtra (1976) — earlier SC disapproved plea bargaining
Kachhia Patel Shantilal v State of Gujarat (1980) — plea bargaining is unconstitutional, illegal (pre-2005)
State of U.P. v Chandrika (1999) — no bargaining on conviction outside the Code
State of Gujarat v Natwar Harchandji Thakor (2005) — plea bargaining welcomed as reform

📌 **≤7 · not W-C-S-J · 30 · 60 · ½ ¼ ¼ ⅙ · final**

Summary trial BNSS 283–288 CrPC 260–265

A short-cut trial for petty cases by CJM, MM, or a JMFC specially empowered by the High Court.

283(1): shall try summarily	283(2): may try summarily
offences not punishable with death, life or > 2 years	offences up to 3 years — after hearing, reasons in writing
theft, receiving/retaining stolen property ≤ ₹20,000 (was ₹2,000)	
house trespass · insult to provoke breach of peace · criminal intimidation	
abetment / attempt of these · cattle-trespass complaints	

→ procedure of a summons case (284) · second-class Magistrate (HC-empowered): fine or ≤ 6 months

→ max sentence 3 months (284(2)) · if unsuitable → switch to regular trial (recall witnesses)

→ **285** brief record: date, parties, offence, value, plea, finding, sentence · **286** brief reasons if plea not guilty · **287** language of court

🆕 **New in BNSS**

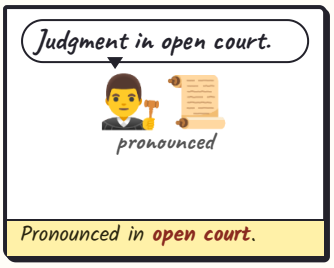
Summary trial now mandatory for listed offences; theft limit raised to ₹20,000; discretionary for offences up to 3 years.

📌 2 yrs · ₹20,000 · 3 months · summons procedure

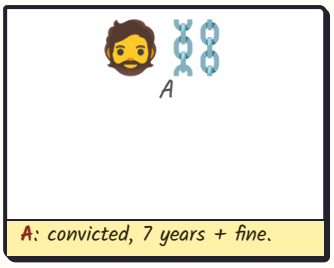
The Verdict

Every judgment has the same skeleton: points, decision, reasons, order.

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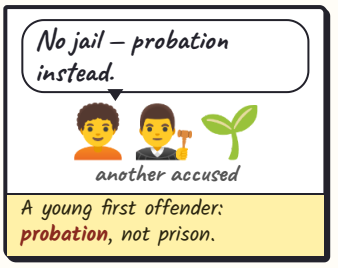
Pronounced in **open court**.



A: convicted, 7 years + fine.



A gets a **free copy** at once (S.404).



A young first offender: **probation**, not prison.

Pronouncing the judgment

BNSS 392 · CrPC 353

- → in open court: whole judgment, operative part, or read out · after trial or a later date with notice
- → accused present (in custody: brought; may be by video)
- → judgment not invalid only because a party had no notice of the date

New in BNSS

Judgment copies to be uploaded on the court's portal — e-courts made official.

Form & content

BNSS 393 · CrPC 354

4 parts: P-D-R-O

Points	Decision	Reasons	Order
for determination	on them	for it	conviction / acquittal

- → language of court · signed and dated
- → conviction: offence + section + punishment · acquittal: offence + set at liberty
- → death: special reasons · life or term: reasons · death: "hanged by the neck till dead"
- → offence ≥ 1 yr but sentence < 3 months: reasons (not summary trial)

📌 P-D-R-O + special reasons for death

Post-conviction orders in lieu of punishment

BNSS 401–402 · CrPC 360–361

Who	Offence	Order
≥ 21 years	fine or ≤ 7 years	probation of good conduct
< 21 or a woman	not death / life	probation of good conduct
anyone (no previous conviction)	theft, dishonest misappropriation, ≤ 2 yrs / fine	admonition

- → bond ≤ 3 years · breach → arrest, sentence for the original offence
- → **402**: not giving this benefit → special reasons in writing
- → Probation of Offenders Act / JJ Act override where in force

New in BNSS

Community service — a new punishment (BNS S.4(f)); Magistrates may impose it (BNSS S.23): e.g. petty theft by a first offender, defamation, drunken misconduct.

> ***Mohd. Giasuddin v State of A.P.*** (1977) — reform the offender; sentencing is corrective

Copy of judgment

BNSS 404–406 · CrPC 363–365

imprisonment
free copy at once

⇩

on application
certified copy; translation; free if appealable

⇩

death by HC
told the appeal period

⇩

others
on payment

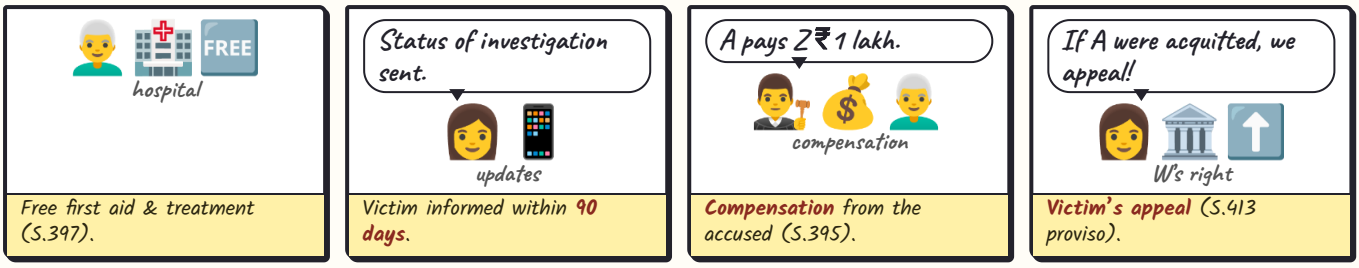
- → **405**: original in court language; translation filed · **406**: Sessions sends copy of finding & sentence to the DM
- → **468** (428): set-off of pre-trial detention

📌 Free · Certified · Told · Paid

The Victim's Voice

The victim is no longer just a witness — the Code gives Z and W a voice.

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Free first aid & treatment (S.397).

Victim informed within **90 days**.

Compensation from the accused (S.395).

Victim's appeal (S.413 proviso).

Who is a victim

BNSS 2(1)(y) · CrPC 2(wa)

Person who suffered loss or injury by the act of the accused — includes guardian or legal heir. Need not be the complainant.

Role of the victim in the process

Stage	Victim's right
FIR	free copy (173) · Zero FIR / e-FIR · woman victim's statement by woman officer
Investigation	informed of progress within 90 days (193) · told of the result
Pre-trial	copies of the police report (230) when represented
Trial	own advocate to assist the PP (338) · heard before withdrawal (360)
Bail / settlement	compounding, plea bargaining: heard, compensated
After	appeal against acquittal, lesser offence, inadequate compensation (413 proviso)

NEW New in BNSS

Victim gets police report copies and 90-day updates; withdrawal of prosecution not allowed without hearing the victim.

Mallikarjun Kodagali v State of Karnataka (2018)

- **story** — A victim's appeal against acquittal was rejected for want of leave.
- **held** — Victim's appeal (S.372 proviso) is a right; no leave needed.

Compensation to crime victims

BNSS 395–400 · CrPC 357–359

BNSS (CrPC)	Rule
395(1) (357(1))	from the fine: costs, loss/injury, dependants of the dead, buyer of stolen goods
395(3) (357(3))	fine not imposed → order the accused to pay compensation
396 (357A)	Victim Compensation Scheme (State + Centre); DLSA/SLSA decides; accused untraced or acquitted too; interim relief
397 (357C)	free first aid & treatment in all hospitals: acid attack, rape
398 (new)	Witness Protection Scheme by every State
399 (358)	compensation to persons groundlessly arrested
400 (359)	costs in non-cognizable complaint cases

→ court must consider compensation in every case and record reasons

→ civil court sets off the amount paid

→ VCS: inquiry within 2 months · police may seek immediate first aid / medical benefits

Ankush Shivaji Gaikwad v State of Maharashtra (2013)

- **story** — HC confirmed conviction but no court considered compensation.
- **held** — S.357 is mandatory to consider; court must apply its mind and record reasons.

Hari Kishan & State of Haryana v Sukhbir Singh (1988) — use 357(3) liberally — a measure of responding to crime

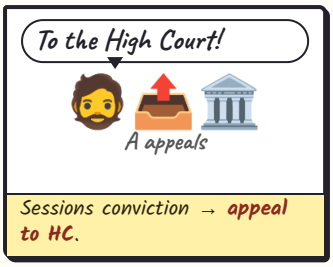
Suresh v State of Haryana (2015) — interim compensation; every district must fund VCS

Nipun Saxena v UOI (2018) — identity of rape victims not to be disclosed

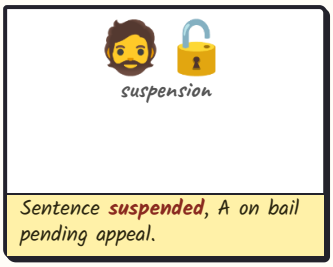
📌 Fine · Order · Scheme · Treatment · Witness · Wrong arrest

No appeal unless the Code gives one — but a superior court can always look again.

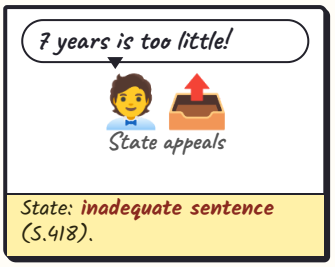
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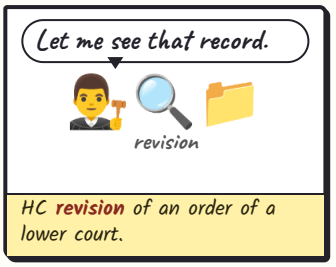
Sessions conviction → **appeal to HC**.



Sentence **suspended**, A on bail pending appeal.



State: **inadequate sentence** (S.418).



HC **revision** of an order of a lower court.

Appeals BNSS 413–435 CrPC 372–394

★ **S.413**: no appeal lies except as provided by the Code or another law. Appeal is a creature of statute.

Conviction by...	Appeal to
High Court (trial)	Supreme Court
Sessions / Addl. Sessions	High Court
any trial with sentence > 7 years	High Court
Magistrate	Court of Session

BNSS (CrPC)	Rule
414 (373)	orders for security / refusing surety
416 (375)	no appeal on a plea of guilty — only extent/legality of sentence
417 (376)	petty cases: no appeal for tiny sentences / summary fines
418 (377)	State: inadequate sentence
419 (378)	against acquittal: State with HC leave · complainant: special leave (6 months public servant, 60 days others)
420 (379)	HC reverses acquittal → death/life/≥ 10 yrs → SC
421 (380)	co-accused's right of appeal
425 (384)	summary dismissal
427 (386)	powers: reverse, alter, retrial, enhance (after hearing)
430 (389)	suspension of sentence; bail pending appeal · death/life/≥ 10 yrs: PP heard · ≤ 3 yrs: trial court may bail
432 (391)	additional evidence
433 (392)	split bench → third judge
435 (394)	abatement on death (relatives may continue in 30 days)

Chandrappa v State of Karnataka (2007)
- *story* — HC reversed an acquittal by re-appreciating evidence.
- *held* — Appellate court can review all evidence; but acquittal **doubles the presumption of innocence** — interfere only if perverse.

Bhagwan Rama Shinde Gosai v State of Gujarat (1999) — fixed-term sentence: suspend liberally

📌 No appeal unless given · Guilty plea · Petty · State · Acquittal

Reference & review BNSS 436–437 · 403 CrPC 395–396 · 362

→ **Reference**: subordinate court doubts the validity of a law → refers to the High Court

→ **No review**: once signed, a criminal court cannot alter or review its judgment — except clerical or arithmetical error (S.403)

→ SC: review under Art. 137 · curative petition (Rupa Ashok Hurra, 2002)

Revision BNSS 438–443 CrPC 397–402

HC or Sessions Judge calls for the record to check correctness, legality, propriety of a finding, sentence, order, or regularity of proceedings.

→ no revision of interlocutory orders (438(2)) · one revision only: HC or Sessions (438(3))

→ **442**: HC uses appellate powers; no prejudice without hearing · acquittal can't be converted into conviction

→ party who could appeal but didn't → no revision · may treat revision as appeal

→ suo motu power

Appeal	v/s	Revision
a **right** given by statute · facts + law · re-hearing		a **discretion** of a superior court · error, illegality · supervisory

Amar Nath v State of Haryana (1977) — interlocutory = intermediate; summons order not purely interlocutory
Madhu Limaye v State of Maharashtra (1977) — intermediate orders; 482 still available
Amit Kapoor v Ramesh Chander (2012) — revision at charge stage: principles

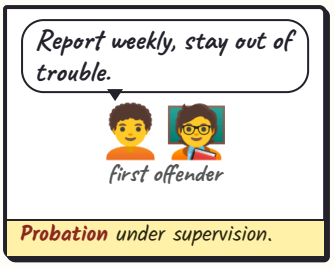
Inherent powers of the High Court BNSS 528 CrPC 482

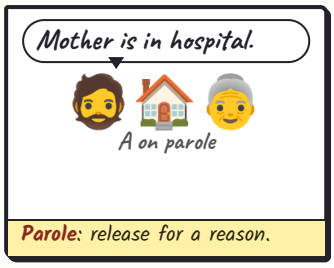
To give effect to an order · prevent abuse of process · secure the ends of justice. Not a new power — only saved.

State of Haryana v Bhajan Lal (1992)
- *story* — FIR against a former CM was challenged as mala fide.
- *held* — **7 categories** for quashing: no offence on face, no cognizable offence, mala fide, legal bar...; use sparingly

Punishment isn't only about locking up — the law also reforms and shows mercy.

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Probation of Offenders Act, 1958 — PO Act

Probation = conditional release of a convict without sentence, under supervision, to reform in society. Object: stop young & first offenders becoming hardened criminals in jail.

Section	Rule
3	admonition: theft (379–381), misappropriation (403), cheating (420), or ≤ 2 yrs/fine · no previous conviction
4	probation of good conduct: offence not death/life · bond ≤ 3 years · supervision order · consider PO's report
5	compensation & costs to victim
6	under 21: no imprisonment unless reasons · PO report must be called
7	PO report confidential
8	vary conditions
9	breach → sentence for the original offence or fine ≤ ₹50
11	appellate & revisional courts can also apply it
12	no disqualification from conviction
13–14	probation officers & their duties
18	doesn't apply to some special laws
19	old CrPC S.562 stops where the Act is in force

conviction → PO report S.6/7 → bond + supervision S.4 → good conduct free, no stigma (S.12) → breach sentenced (S.9)

Jugal Kishore Prasad v State of Bihar (1972) — object: reform young offenders
Rattan Lal v State of Punjab (1965) — beneficial; applied at the appellate stage
Ishar Das v State of Punjab (1972) — Act can apply to food adulteration offences
Dalbir Singh v State of Haryana (2000) — not for rash driving causing death

📌 3 admonish · 4 probation · 6 under 21 · 9 breach · 12 no stigma

Parole & furlough — State prison rules

Parole
for a **reason** (illness, death, marriage) · short · period usually **not counted** · not a right

v/s

Furlough
after some years, for **good conduct** · no reason needed · **counted** in the sentence · a kind of right

→ **Authority**: State Govt / Inspector General of Prisons / DM under prison rules (prisons = State List)
→ **Supervision**: police / probation officer · reports in · breach → re-arrest, period lost
→ custody parole (escorted) for emergencies

Asfaq v State of Rajasthan (2017) — parole v furlough explained
State of Haryana v Mohinder Singh (2000) — furlough isn't an absolute right

📌 Parole = reason · Furlough = reward

Conditional release, commutation, suspension

BNSS 472–477 · CrPC 432–435

BNSS (CrPC)	Power
473 (432)	appropriate Govt may suspend or remit a sentence with/without conditions · ask the judge's opinion · breach → arrest without warrant
474 (433)	commute: death → life · life → ≥ 7 yrs · 7+ yrs → ≥ 3 yrs · < 7 yrs → fine
475 (433A)	life for an offence also punishable with death → no release before 14 years
477 (435)	consult the Centre in CBI / Central cases
430 (389)	suspension pending appeal (Ep. 13)

NEW — New in BNSS
S.472 mercy petition in death cases: within 30 days of being told of the SC's dismissal; to Governor and President; no appeal against the President's order.

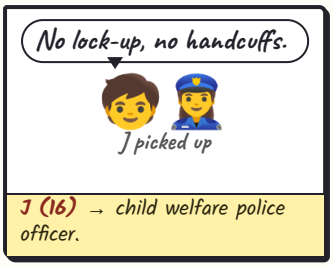
Constitution: Art. 72 President · Art. 161 Governor — pardon, reprieve, respite, remission, commutation.

Maru Ram v UOI (1980) — S.433A valid; Arts. 72/161 untouched
Kehar Singh v UOI (1989) — President may examine the evidence afresh
Epuru Sudhakar v Govt of A.P. (2006) — pardon is judicially reviewable on limited grounds
Union of India v V. Sriharan (2016) — life = whole life; courts may fix a term without remission

📌 473 remit · 474 commute · 475 fourteen · 72/161

A child is never an accused — the JJ Act calls him a child in conflict with law.

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JJ Act 2015: salient features

- replaced JJ Act 2000 after the Delhi 2012 case · child = under 18 (S.2(12))
- two tracks: CCL (in conflict with law) → JJB · CNCP (need of care) → CWC
- 16–18 & heinous → preliminary assessment, may be tried as adult
- 3 classes of offence, CARA statutory, mandatory registration of homes, new offences against children
- 2021 amendment: DM issues adoption orders, supervises; 'serious' offence widened

Principles (S.3): presumption of innocence · dignity · best interest · family responsibility · institutionalisation last resort · non-stigmatising words · privacy · fresh start · diversion · natural justice.

Class	Punishment (adult)
Petty 2(45)	max ≤ 3 years
Serious 2(54)	3–7 years · also > 7 yrs with no minimum or minimum < 7 (2021)
Heinous 2(33)	minimum ≥ 7 years

🎬 *J's case*

Attempt to murder has no minimum of 7 years → serious, not heinous → J is tried only as a child by the JJB.

***Shilpa Mittal v State (NCT Delhi)* (2020)**

- **story** — Juvenile accused of culpable homicide (max 10 years, no minimum) — heinous?
- **held** — No: heinous needs **minimum ≥ 7 years**; such offences treated as serious (now in the Act).

📌 Petty ≤ 3 · Serious 3–7 · Heinous min 7

Children in conflict with law: procedure

BNSS S.4–26

apprehended
SJPU / CWPO · never lock-up or jail (10)

⇩

24 hours
before JJB

⇩

bail
rule (12)

⇩

SIR
PO report in 2 weeks (13)

⇩

inquiry
4 months + 2 (14)

⇩

orders
18

- **S.12 bail**: released, bailable or not — unless known criminals · danger · ends of justice; else observation home
- **S.14**: petty → summary · serious → summons-case trial · heinous < 16 → summons-case trial
- **S.15**: 16–18 + heinous → preliminary assessment (mental & physical capacity, consequences, circumstances) in 3 months; experts help
- **S.18 orders**: advice, admonition · group counselling · community service · fine on parents · probation · special home ≤ 3 years
- **S.19 Children's Court**: try as adult or child · place of safety till 21, then jail
- **S.21**: no death, no life without release · **S.22**: no security proceedings · **S.23**: no joint trial with adults
- **S.24**: no disqualification; records destroyed · **S.74**: identity not disclosed (media)

Age (S.94): ① school / matriculation certificate → ② birth certificate (municipality / panchayat) → ③ only then ossification / medical test (within 15 days). Juvenility can be raised at any stage, even after disposal (S.9(2)).

***Pratap Singh v State of Jharkhand* (2005)** — age on the date of offence counts

***Hari Ram v State of Rajasthan* (2009)** — benefit of the Act to those under 18 on the offence date

***Abuzar Hossain v State of W.B.* (2012)** — juvenility claim at any stage

***Jarnail Singh v State of Haryana* (2013)** — same age rules for a child victim

Juvenile Justice Board BNSS S.4–9

JJB in every district

Principal Magistrate	2 social workers
MM / JMFC, 3 yrs' experience	at least one woman

→ Board acts by majority; Principal Magistrate's view prevails if no majority · sits in a child-friendly place, not a court room

→ powers of a Metropolitan Magistrate / JMFC; exclusive jurisdiction over CCL

→ **S.8 functions**: informed participation of child & parents · legal aid · interpreter · CNCP → CWC · inquiry & orders · inspect homes · order FIR for offences against children

→ **S.9**: any Magistrate who finds the accused is a child → forward to the Board

📌 1 Magistrate + 2 social workers (1 woman)

Child in need of care & protection · CWC

BNSS S.2(14) · 27–38

CNCP: no home or support · child labour · begging · abused or exploited · parents unfit or abusive · orphan, abandoned, surrendered · missing or runaway · trafficked · risk of child marriage · mentally ill or disabled without support.

→ **CWC (S.27)**: every district · Chairperson + 4 members (one woman, one child expert) · bench of a Magistrate · final authority for CNCP

→ **S.31**: produced within 24 hours — by police, public servant, Childline, NGO, doctor, citizen, or the child

→ **S.32–33**: mandatory reporting of found children; non-reporting is an offence · **S.35** surrender (2 months to reconsider)

→ **S.36**: social investigation report in 15 days · order in 4 months → children's home, fit facility, fit person, foster care, declare legally free for adoption (S.38)

📌 CWC = 1 + 4 · 24 hours · 15 days · 4 months

Adoption BNSS S.56–73

legally free (orphan / abandoned / surrendered (38)) → PAP registers (CARA portal) → referral & matching (SAA) → pre-adoption foster care → DM's adoption order (S.61 (2021))

→ **S.57** PAP: physically fit, financially sound, mentally alert, motivated · both spouses consent · single woman: any child · single man: not a girl

→ **S.59** inter-country: last resort after in-country (NRI/OCI first)

→ **S.63**: adopted child = child of adoptive parents for all purposes; ties with birth family end

→ **S.68 CARA** — central nodal body · SARA (67) · SAA (65) · **S.80–81** adoption without procedure / sale of children punishable

Lakshmi Kant Pandey v UOI (1984) — guidelines for inter-country adoption

Shabnam Hashmi v UOI (2014) — JJ Act adoption open to all religions; optional

Rehabilitation & social reintegration

BNSS S.39–55

Facility	For
Observation home (47)	CCL during inquiry
Special home (48)	CCL after the S.18 order
Place of safety (49)	16–18 heinous / tried as adult; till 21
Children's home (50)	CNCP
open shelter (43)	short-term, street children
foster care (44)	family-based, incl. group foster care
sponsorship (45)	money support to stay in family
after-care (46)	leaving care at 18 → till 21 (23)
fit facility / fit person (51–52)	approved NGO / individual

→ family-based care first; institution = last resort · individual care plan · restoration to family (40)

→ all homes registered (41) · inspection committees (54) · education, skills, health, counselling (53)

Offences against children (Ch. IX): S.75 cruelty · 76 begging · 77 liquor/drugs · 79 exploiting a child employee · 83 use by militant groups · 81 sale of children.

Sheela Barse v Union of India (1986)

- *story*: Children found lodged in jails with adults.
- *held*: Children must never be kept in jails; speedy trial; homes in every district.

Sampurna Behrua v UOI (2018) — JJBs, CWCs, homes must actually work

Subramanian Swamy v Raju (2014) — child = under 18 upheld; no offence-based reading down

📌 Observation → Special → Safety · Children's home for CNCP · Family first

The whole story in one page

Ep 0 Rules first: fair procedure (Arts. 14, 20, 21), courts, police, PP, defence; offences are cognizable/non-, bailable/non-, summons/warrant.

Ep 1 W lodges an FIR (173) → SI investigates (174–196) → A in custody 24 h → 15 days in parts → charge sheet (193) in 60/90 days.

Ep 2 A arrested without warrant (35); B gets a notice (35(3)); both told grounds, lawyer, relative; D.K. Basu.

Ep 3 Knife found in a search with 2 witnesses + video (103, 105, 185); seized (106); search is not testimony (M.P. Sharma).

Ep 4 Magistrate takes cognizance (210); W's complaint: examine (223), dismiss (226) or summon (227); A committed to Sessions (232).

Ep 5 A seeks bail (480/483); B gets anticipatory bail (482); default bail if no charge sheet (187).

Ep 6 A skips court: summons → warrant → proclamation (30 days) → attachment → trial in absentia (356).

Ep 7 Lawyer's pleas: jurisdiction, venue (197), limitation (6m/1/3/none), double jeopardy (337) — all fail.

Ep 8 A's trial is fair: innocence presumed, copies, cross-examination, S.351, speedy trial (Hussainara).

Ep 9 Charge framed (W-W-W-W-H) → plea → evidence → defence → judgment + hearing on sentence (258).

Ep 10 W–B compound (359); B plea-bargains (289); small thefts go to summary trial (283).

Ep 11 A's judgment (P-D-R-O, 393); a first offender gets probation (401); free copy (404).

Ep 12 Z gets treatment, updates, compensation (395–397); W could appeal an acquittal (413 proviso).

Ep 13 A appeals to HC (415), sentence suspended (430); State appeals for more (418); revision (438); S28.

Ep 14 In prison: parole, furlough, remission (473), 14-year bar (475); probation under the PO Act.

Ep 15 J (16) → JJB in 24 h, bail, inquiry in 4 months, special home≤3 yrs; S (8) → CWC → foster care / adoption.

Numbers to remember

24 h produce arrestee (58)	**15 days** police custody, in parts	**60/90** charge sheet / default bail	**14 days** preliminary enquiry 3–7 yrs
7 yrs S.35(3) notice · plea bargaining	**6 hours** private arrest → police	**½ · ⅓** undertrial release (479)	**30 days** proclamation
6m · 2y attachment claim · restore	**6·1·3** limitation	**120 days** deemed sanction (218)	**90 days** committal · victim update
60 · 30–45 charge · judgment (Sessions)	**₹20,000** summary trial theft	**3 months** summary trial max	**30 · 60** plea bargaining
3 yrs probation bond max	**14 yrs** S.475 bar	**4+2 m** JJB inquiry	**3 m** preliminary assessment

Latin card

Audi alteram partem — hear the other side

Nemo judex in causa sua — no one is judge in his own cause

Nemo debet bis vexari — no one vexed twice — double jeopardy

Autrefois acquit / convict — already acquitted / convicted

Nullum tempus occurrit regi — time does not run against the Crown

Actus curiae neminem gravabit — act of court harms no one

Ei incumbit probatio qui dicit — burden on the one who asserts

Functus officio — court's job is done — no review

Habeas corpus — produce the body

Parens patriae — State as parent of the child

Section finder (BNSS ↔ CrPC)

Topic	BNSS	CrPC
Arrest without warrant	35	41
Notice of appearance	35(3)	41A
Produce in 24 h	58	57
FIR	173	154
Police custody / remand	187	167
Charge sheet	193	173
Confession	183	164
Search warrant	96	93
General rules of search	103	100
Police search	185	165
Seizure	106	102
Summons	63	61
Proclamation	84	82
Cognizance	210	190
Complaint	223	200
Dismissal	226	203
Process	227	204
Bailable	478	436
Non-bailable	480	437
Anticipatory	482	438
HC / Sessions bail	483	439
Venue	197	177
Double jeopardy	337	300
Limitation	514	468
Charge	234	211
Joinder	242–243	219–220
Sessions trial	248–260	225–237
Examination of accused	351	313
Summary trial	283	260
Plea bargaining	289–300	265A–L
Compounding	359	320
Judgment	392–393	353–354
Compensation	395	357
Victim comp. scheme	396	357A
Probation / admonition	401	360
No review	403	362
Copy of judgment	404	363
Appeal	413–435	372–394
Suspension of sentence	430	389
Revision	438–443	397–402
Remission / commutation	473–475	432–433A
Inherent powers	528	482

Test yourself

MCQs

1. Plea bargaining is NOT available for an offence
(a) punishable up to 7 years · (b) against a woman · (c) of theft · (d) on a private complaint

2. Composition of a compoundable offence has the effect of
(a) discharge · (b) acquittal · (c) conviction · (d) stay

3. Maximum sentence in a summary trial is
(a) 6 months · (b) 1 year · (c) 3 months · (d) 2 years

4. Victim's right to appeal against acquittal is in
(a) BNSS 413 proviso · (b) BNSS 419 only · (c) BNSS 438 · (d) Art. 136

5. A criminal court cannot review its judgment except to correct
(a) facts · (b) sentence · (c) clerical/arithmetical errors · (d) law

6. Revision does NOT lie against
(a) final orders · (b) interlocutory orders · (c) sentences · (d) acquittals

7. A heinous offence under the JJ Act carries
(a) max 3 years · (b) min 7 years or more · (c) 3–7 years · (d) fine only

8. JJB must receive a child within
(a) 12 hours · (b) 24 hours · (c) 48 hours · (d) 7 days

9. Adoption orders after the 2021 amendment are passed by the
(a) Civil Court · (b) CWC · (c) District Magistrate · (d) JJB

10. Release on probation under the PO Act is under section
(a) 3 · (b) 4 · (c) 6 · (d) 12

Fill in the blanks

1. Bail, not jail — said in ___ (1977).

2. Anticipatory bail is granted only by HC or ___.

3. Undertrial first-time offender released after ___ of the maximum.

4. Sanction is deemed if not decided in ___ days.

5. Speedy trial as part of Art. 21 — ___ (1979).

6. Parole for a reason; ___ for good conduct.

7. Life convict where death was possible: no release before ___ years.

8. Age determination under the JJ Act is in section ___.

9. Free treatment of acid-attack and rape victims: BNSS ___.

10. Inherent powers of HC: BNSS ___ (CrPC 482).

Short answers (plan)

1. Distinguish appeal and revision.
Appeal = statutory right, re-hearing on facts and law; revision = discretionary supervisory power to correct illegality, impropriety (Ep 13).

2. Plea bargaining: when, how, sentence.
≤7 yrs, not vs woman/child<14, socio-economic, juvenile; apply in 30 days of charge; MSD in 60 days; ½ / ¼ of minimum or ¼ / ⅙ of maximum; final (Ep 10).

3. Role of the victim in the criminal process.
FIR copy, 90-day updates, police report copies, advocate assisting PP, heard on withdrawal, compensation 395–397, appeal 413 proviso (Ep 12).

4. Probation v parole.
Probation = instead of sentence, by court, PO Act S.4; parole = temporary release during sentence, by executive under prison rules (Eps 11, 14).

5. Procedure for a CCL in a heinous offence (16–18).
SJPU → JJB in 24 h → bail rule (12) → SIR → preliminary assessment in 3 months (15) → Children's Court or JJB orders (18) → place of safety (Ep 15).

6. Compensation to crime victims.
395 from fine/order; 396 VCS incl. untraced accused, interim relief; Ankush Gaikwad: must consider; Suresh 2015 (Ep 12).

7. Rights of arrested persons.
Grounds, bail info, 24 h, lawyer, relative informed, medical exam, Art. 22, D.K. Basu (Ep 2).

8. Rehabilitation under the JJ Act.
Observation, special, children's homes, place of safety, foster care, sponsorship, after-care; family first (Ep 15).

Answers

MCQ: 1-b · 2-b · 3-c · 4-a · 5-c · 6-b · 7-b · 8-b · 9-c · 10-b

Fill-ups: 1. State of Rajasthan v Balchand · 2. Court of Session · 3. one-third · 4. 120 · 5. Hussainara Khatoon · 6. furlough · 7. 14 · 8. 94 · 9. 397 · 10. 528

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